

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Post-Rehearing Release Order

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered August 13, 2026

The Court denied Blue Ember’s timely petition for panel rehearing on August 6, 2026. Seven days have elapsed, and no qualifying mandate stay is in effect on this rehearing route. The clerk is directed to release the mandate today in accordance with Federal Rule of Appellate Procedure 41.

The mandate shall transmit the July 9 judgment without enlargement: affirmance of the district court’s mitigation JMOL and affirmance of the \$2,700,000 amended judgment. It shall contain no remand instruction and no decision concerning the dormant conditional Rule 59 ruling or the possible limitation of a hypothetical new trial.

This August 13 release follows the rehearing-denial sequence and is mutually exclusive of the July 30 ordinary route. It must not be combined with a mandate-stay denial or grant path. Each source retains the never-occurred docket and both warnings so sequence training cannot be mistaken for actual appellate activity.

Electronic notice issues to Maya Holt and Jonas Bell for Blue Ember and Eli Mercer and Tara Webb for Granite Heron. The clerk shall transmit the mandate to fictional district clerk Avery Thorn and preserve branch isolation. Receipt has no legal consequence outside this synthetic record.